

Senate File 630

S-3169

1 Amend Senate File 630 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 2.42, Code 2025, is amended by adding
5 the following new subsection:

6 NEW SUBSECTION. 17. To review and disapprove
7 interdepartmental transfers described in section 8.39,
8 subsection 4, paragraph "c", as the council may determine.

9 Sec. 2. Section 8.39, subsections 2 and 4, Code 2025, are
10 amended to read as follows:

11 2. If the appropriation of a department, institution,
12 or agency is insufficient to properly meet the legitimate
13 expenses of the department, institution, or agency, the
14 director of the department of management, with the approval
15 of the governor, may make an interdepartmental transfer from
16 any other department, institution, or agency of the state
17 having an appropriation in excess of its needs, of sufficient
18 ~~funds~~ moneys to meet that deficiency. Such transfer shall
19 be to an appropriation made from the same funding source and
20 within the same fiscal year. The amount of a transfer made
21 from an appropriation under this subsection shall be limited
22 to not more than one-tenth of one percent of the total of all
23 appropriations made from the funding source of the transferred
24 appropriation for the fiscal year in which the transfer is
25 made. An interdepartmental transfer to an appropriation which
26 is not an entitlement appropriation is not authorized when
27 the general assembly is in regular session and, in addition,
28 the sum of interdepartmental transfers in a fiscal year to an
29 appropriation which is not an entitlement appropriation shall
30 not exceed fifty percent of the amount of the appropriation
31 as enacted by the general assembly. For ~~the~~ purposes of this
32 subsection, ~~an entitlement appropriation is:~~

33 a. "Appropriation in excess of its needs" means that the
34 amount appropriated by the general assembly for a purpose is
35 determined by the department, institution, or agency receiving

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1 the appropriation to be more than the amount necessary to carry
2 out that purpose. An appropriation for an unspecified dollar
3 amount, whether the appropriation is limited to be sufficient
4 to carry out a particular purpose or is unlimited, shall not
5 be considered an appropriation in excess of a department's,
6 institution's, or agency's needs.

7 b. "Entitlement appropriation" means a line item
8 appropriation to the state public defender for indigent defense
9 or to the department of health and human services for foster
10 care, state supplementary assistance, medical assistance, or
11 for the family investment program.

12 4. a. Prior to any transfer of funds moneys pursuant
13 to subsection 1 or 2 of this section, or a transfer of an
14 allocation from a subunit of a department which statutorily has
15 independent budgeting authority, the director of the department
16 of management shall notify the chairpersons of the standing
17 committees on appropriations of the senate and the house of
18 representatives and the chairpersons of subcommittees of such
19 committees of the proposed transfer. The notice from the
20 director shall include information concerning the amount of the
21 proposed transfer, the departments, institutions, or agencies
22 affected by the proposed transfer, and the reasons for the
23 proposed transfer. Chairpersons

24 b. Unless a transfer is governed under paragraph "c",
25 chairpersons notified shall be given at least two weeks to
26 review and comment on the proposed transfer before the transfer
27 of funds is made.

28 c. (1) This paragraph applies to any transfer made for a
29 fiscal year under subsection 2 between July 1 of that fiscal
30 year and the subsequent first day of the regular session of the
31 general assembly occurring in that fiscal year.

32 (2) The director shall submit the notice required by this
33 subsection to the chairpersons at least three weeks before the
34 proposed transfer is made.

35 (3) In addition to the information otherwise required, the

1 notice required by this subsection and submitted under this
2 paragraph must also include all of the following:

3 (a) Information demonstrating that the appropriation from
4 which the transfer will be made is in excess of the entity's
5 needs taking into account the date on which the transfer will
6 occur within the fiscal year, and the reason the excess was not
7 anticipated.

8 (b) Information demonstrating that the appropriation to
9 which the transfer will be made is insufficient to properly
10 meet the legitimate expenses of the entity taking into account
11 the date on which the transfer will occur within the fiscal
12 year, and the reason the deficiency was not anticipated.

13 (c) Information demonstrating that sufficient state moneys
14 are available in the single funding source involved in the
15 transfer, and citations to the law under which all entities
16 affected by the transfer were appropriated moneys from that
17 funding source for the applicable fiscal year.

18 (4) Prior to the date the proposed transfer will be made,
19 the legislative council may meet to consider the transfer. At
20 the meeting, the legislative council may vote to disapprove the
21 transfer. If the legislative council disapproves the transfer,
22 the transfer shall not occur.

23 Sec. 3. Section 8.57C, subsections 2, 3, and 4, Code 2025,
24 are amended to read as follows:

25 2. Moneys in the fund in a fiscal year shall be used as
26 appropriated by the general assembly for the acquisition
27 of computer hardware and software, software development,
28 telecommunications equipment, and maintenance and lease
29 agreements associated with technology components and for the
30 purchase of equipment intended to provide an uninterruptible
31 power supply are appropriated to the department of management
32 to provide a stable funding source for implementation costs
33 of state information technology projects that enhance the
34 state's technology infrastructure, improve government services,
35 and promote innovation and economic development, including

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1 but not limited to new information technology projects
2 and infrastructure replacement efforts of a department or
3 establishment.

4 a. The department shall prioritize proposed projects based
5 on all of the following considerations:

6 (1) Whether the project aligns with the state's strategic
7 priorities.

8 (2) Whether the project promotes or introduces new
9 technology or significantly improves an existing system.

10 (3) Whether the project is feasible and whether the
11 department or establishment has established readiness for the
12 project to proceed, including a clear assessment of timelines,
13 budgets, and measurable outcomes.

14 (4) Whether the project includes a clear change management
15 strategy to support user adoption and aligns with lean
16 enterprise principles to maximize value, minimize waste, and
17 ensure continuous improvement.

18 (5) Whether the project provides a positive return on
19 investment, considering both financial returns and nonfinancial
20 benefits such as improved public safety, education, or health
21 care.

22 (6) Whether the project results in infrastructure that is
23 scalable across the state enterprise.

24 (7) Whether the department or establishment has identified
25 how the completed project will be sustained beyond the initial
26 funding period.

27 (8) Whether the project improves access to governmental
28 services, particularly in rural communities.

29 (9) Whether the project involves an infrastructure project
30 as opposed to maintenance or standard upgrades of existing
31 technology.

32 b. The department shall provide a prioritized list of
33 proposed projects for funding to the governor, who shall use
34 the list in developing a budgetary recommendation for the
35 general assembly pursuant to section 8.21.

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1 3. a. There is appropriated from the general fund of the
2 state to the technology reinvestment fund for the fiscal year
3 beginning July 1, 2025, and for each subsequent fiscal year
4 thereafter, the sum of seventeen million five hundred thousand
5 dollars.

6 ~~b. There is appropriated from the rebuild Iowa~~
7 ~~infrastructure fund for the fiscal year beginning July 1, 2023,~~
8 ~~and ending June 30, 2024, the sum of eighteen million three~~
9 ~~hundred ninety thousand two hundred ninety dollars to the~~
10 ~~technology reinvestment fund, notwithstanding section 8.57,~~
11 ~~subsection 3, paragraph "c".~~

12 ~~c. There is appropriated from the rebuild Iowa~~
13 ~~infrastructure fund for the fiscal year beginning July 1, 2024,~~
14 ~~and ending June 30, 2025, the sum of twenty-one million one~~
15 ~~hundred thirty-one thousand eight hundred seventy-three dollars~~
16 ~~to the technology reinvestment fund, notwithstanding section~~
17 ~~8.57, subsection 3, paragraph "c".~~

18 b. Notwithstanding section 8.33, moneys in the fund
19 that remain unencumbered or unobligated at the close of a
20 fiscal year shall not revert but shall remain available for
21 expenditure for the purposes designated. Notwithstanding
22 section 12C.7, subsection 2, interest or earnings on moneys in
23 the fund shall be credited to the fund.

24 4. ~~Annually, on~~ On or before January 15 of each year, a
25 ~~state agency that received an appropriation from this fund~~
26 the department of management shall report to the legislative
27 ~~services agency and the department of management general~~
28 assembly the status of all projects funded under this section
29 that have been completed since the previous report was
30 submitted or that are in progress. The report shall must
31 include a description of the project, the progress of work
32 completed, the total estimated cost of the project, a list of
33 all revenue sources being used to fund the project, the amount
34 of ~~funds~~ moneys expended, the amount of ~~funds~~ moneys obligated,
35 and the date the project was completed or an estimated

1 completion date of the project, where applicable.

2 Sec. 4. Section 8.78, Code 2025, is amended to read as
3 follows:

4 **8.78 Background checks.**

5 An applicant for employment with the department, or
6 an applicant for employment with a supported entity for a
7 position as information technology staff, may be subject to a
8 background investigation by the department. The background
9 investigation may include, without limitation, a work history,
10 financial review, request for criminal history data, and
11 national criminal history check through the federal bureau of
12 investigation. In addition, a contractor, vendor, employee, or
13 any other individual performing work for the department, or an
14 individual on the information technology staff of a supported
15 entity, may be subject to a national criminal history check
16 through the federal bureau of investigation at least once
17 every ~~ten~~ five years, including, without limitation, any time
18 the department or supported entity has reason to believe an
19 individual has been convicted of a crime. The department may
20 request the national criminal history check and, if requested,
21 shall provide the individual's fingerprints to the department
22 of public safety for submission through the state criminal
23 history repository to the federal bureau of investigation.
24 The individual shall authorize release of the results of the
25 national criminal history check to the department and the
26 applicable supported entity. The department shall pay the
27 actual cost of the fingerprinting and national criminal history
28 check, if any, unless otherwise agreed as part of a contract
29 between the department or supported entity and a vendor or
30 contractor performing work for the department or supported
31 entity. The results of a criminal history check conducted
32 pursuant to [this section](#) shall not be considered a public
33 record under [chapter 22](#).

34 **Sec. 5. NEW SECTION. 8.94 Contracts — prohibited terms.**

35 Provisions included in a contract entered into pursuant to

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1 this subchapter that impose terms or conditions prohibited by
2 this section are void as contrary to public policy. Such a
3 contract shall be interpreted and enforced as if the contract
4 did not include the prohibited terms or conditions. Prohibited
5 terms and conditions include all of the following:

6 1. A provision requiring the department or a supported
7 entity to defend, indemnify, hold harmless another person, or
8 otherwise assume the debt or liability of another person in
9 violation of Article VII, section 1, of the Constitution of the
10 State of Iowa.

11 2. A provision that seeks to impose a term that is unknown
12 to the department or supported entity at the time of signing
13 the contract or that can be unilaterally changed by an entity
14 other than the department or a supported entity.

15 3. A provision that violates chapter 13 by not allowing
16 the department or a supported entity to participate in its own
17 defense through representation by the attorney general.

18 4. A provision that grants to a person other than the
19 attorney general the authority to convey to a court or litigant
20 the state's consent to any settlement of a suit involving the
21 contract when such settlement could impose liability on the
22 state.

23 5. A provision that specifies that the contract is governed
24 by the laws of a foreign state or nation.

25 6. A provision that claims blanket confidentiality of the
26 contract's terms.

27 7. A provision that claims that payment terms, including but
28 not limited to cost proposals or other pricing information, of
29 the contract are confidential.

30 8. A provision that authorizes or requires a venue for
31 litigation other than an appropriate state or federal court
32 sitting in Iowa.

33 9. A provision that requires the department or a supported
34 entity to pay attorney fees, court costs, or other litigation
35 expenses in the event of a contractual dispute.

1 10. A provision that imposes on the department or a
2 supported entity binding arbitration or any other binding
3 extrajudicial dispute resolution process in which the final
4 resolution is not determined by the state.

5 11. A provision that waives the department's or a supported
6 entity's right to a jury trial.

7 12. A provision that obligates the department or a supported
8 entity to pay late payment charges not consistent with section
9 8A.514, interest greater than allowed under section 8A.514 or
10 other applicable law, or any cancellation charges, as such
11 charges constitute pledges of the state's credit.

12 13. A provision that obligates the department or a supported
13 entity to pay a tax.

14 14. A provision that imposes a prior notice obligation
15 on the department or a supported entity as a condition for
16 the automatic renewal of a software license. The department
17 or a supported entity may provide notice of its intent to
18 terminate a software license at any time before the renewal
19 date established in the contract.

20 15. A provision that obligates the department or a supported
21 entity to accept risk of loss before the receipt of items or
22 goods.

23 16. A provision that obligates the department or a supported
24 entity to have commercial insurance.

25 17. A provision that obligates the department or a supported
26 entity to grant to a nongovernmental entity full or partial
27 ownership of intellectual property developed pursuant to the
28 contract when the intellectual property is developed in whole
29 or in part using federal funding.

30 18. A provision that limits the time in which the department
31 or a supported entity may bring a legal claim under the
32 contract to a period shorter than that provided in Iowa law.

33 19. A boilerplate provision included in transactional
34 documents received by the department or a supported entity that
35 seeks to alter the terms of the contract or to impose new terms

1 in the contract.

2 Sec. 6. NEW SECTION. **8.95 Contracts — required terms.**

3 All of the following provisions shall be deemed to be
4 included in a contract entered into by the department or a
5 supported entity under this subchapter:

6 1. *Governing law.* The contract shall be governed by
7 the laws of the state of Iowa, without giving effect to any
8 conflicts of law principles of Iowa law that may require the
9 application of another jurisdiction's law.

10 2. *Venue.* Any litigation commenced in connection with the
11 contract shall be brought and maintained in an appropriate
12 state or federal court sitting in Iowa.

13 Sec. 7. NEW SECTION. **8.96 Contracts — limitation of**
14 **liability — prohibited terms.**

15 Notwithstanding section 8A.311, subsection 22, and rules
16 adopted pursuant to that subsection, the director may include
17 a contractual limitation of vendor liability in information
18 technology goods and services contracts. A contractual
19 limitation of vendor liability must take into consideration the
20 public interest and the mitigation of risks associated with the
21 use of information technology goods or services. Any portion
22 of a contractual limitation of vendor liability that includes
23 a repudiation of all liability for cybersecurity incidents or
24 a limitation on the vendor's liability for intentional torts,
25 criminal acts, fraudulent conduct, intentional or willful
26 misconduct, gross negligence, death, bodily injury, damage to
27 real or personal property, intellectual property violations,
28 liquidated damages, compliance with applicable laws, violations
29 of confidential information obligations, or contractual
30 obligations of the vendor pertaining to indemnification shall
31 be void as a matter of law as contrary to public policy. A
32 contractual limit of vendor liability that does not apply
33 equally to the contracted parties or that limits a vendor's
34 liability to less than the contract value inclusive of all
35 possible extensions is void as a matter of law as contrary to

1 public policy.

2 Sec. 8. NEW SECTION. **8.97 Confidentiality of communications**
3 **with chief information security officer.**

4 In the interest of facilitating communication between
5 the chief information security officer and other entities
6 concerning security incidents and security breaches, all such
7 communications and any documents generated based in whole or in
8 part on such communications are confidential. Notwithstanding
9 chapter 22 or any other provision of law to the contrary, the
10 department shall not release such communications pursuant to
11 state open records laws, and such communications shall not be
12 received into evidence, subject to discovery, or otherwise
13 used in a trial, hearing, or other proceeding in or before any
14 court, regulatory body, or other authority of the state or a
15 political subdivision of the state, unless the communications
16 are subject to a protective order that prohibits further
17 disclosure of such communications and requires any court
18 filings of such communications to be made under seal. It is
19 the intent of the general assembly that these prohibitions and
20 restrictions also apply to federal courts, regulatory bodies,
21 and other authorities and for purposes of federal open records
22 laws, to the extent allowed by federal law and court rules.

23 The chief information security officer shall not release such
24 communications other than for any of the following purposes:

25 1. Identifying a cybersecurity threat, including the source
26 of the cybersecurity threat, or a security vulnerability, and
27 then only to government officials for purposes of addressing
28 the threat.

29 2. Responding to, or otherwise preventing or mitigating,
30 a specific threat of death, serious bodily harm, or serious
31 economic harm.

32 3. Responding to, investigating, prosecuting, or otherwise
33 preventing or mitigating a serious threat to a minor, including
34 sexual exploitation and threats to physical safety.

35 4. Preventing, investigating, disrupting, or prosecuting an

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1 offense under state or federal law.

2 5. Providing a confidential cybersecurity briefing to the
3 governor or a member of the general assembly.

4 Sec. 9. NEW SECTION. 8.98 Criminal justice information.

5 1. The department is authorized to maintain an integrated
6 information system that enables automated data sharing among
7 the executive branch, judicial branch, and local agencies.

8 2. The department is designated as the Iowa statistical
9 analysis center for the purpose of coordinating with data
10 resource agencies to provide data and analytical information
11 to federal, state, and local governments. Notwithstanding any
12 other provision of state law to the contrary, unless prohibited
13 by federal law or regulation, the department shall be granted
14 access, for purposes of research and evaluation, to all of
15 the data listed in this subsection, except that intelligence
16 data and peace officer investigative reports maintained
17 by the department of public safety shall not be considered
18 data for the purposes of this section. The department of
19 management and any record, data, or information obtained by the
20 department under this subsection is subject to the federal and
21 state confidentiality laws and rules, including as described
22 in chapter 22, applicable to the original record, data, or
23 information, and to the original custodian of the record,
24 data, or information. Authorized access under this subsection
25 includes but is not limited to all of the following:

26 a. Juvenile court records and all other information
27 maintained under sections 232.147 through 232.151.

28 b. Child abuse information under sections 235A.15 through
29 235A.19.

30 c. Dependent adult abuse records maintained under chapter
31 235B.

32 d. Criminal history data maintained under chapter 692.

33 e. Sex offender registry information maintained under
34 chapter 692A.

35 f. Presentence investigation reports maintained under

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1 section 901.4.

2 *g.* Corrections records maintained under sections 904.601 and
3 904.602.

4 *h.* Community-based correctional program records maintained
5 under chapter 904.

6 *i.* Parole records maintained under chapter 906.

7 *j.* Deferred judgment, deferred or suspended sentence, and
8 probation records maintained under chapter 907.

9 *k.* Violation of parole or probation records maintained under
10 chapter 908.

11 *l.* Fine and victim restitution records maintained under
12 chapters 909 and 910.

13 *m.* Child welfare records maintained under chapter 235.

14 3. The department is authorized to provide data analysis and
15 reporting on issues that may affect the state's correctional
16 population and various subgroups of the population. This
17 reporting may include the review of filed, public legislative
18 bills, joint resolutions, and amendments, and compiling
19 criminal justice data for completion of correctional impact
20 statements under section 2.56, racial impact statements, and an
21 annual prison population forecast.

22 4. The department is authorized to maintain a multiagency
23 information system to track the progress of juveniles and
24 adults who have been charged with a criminal offense in
25 the court system through various state and local agencies
26 and programs. This system must utilize existing databases,
27 including the Iowa court information system, the Iowa
28 corrections offender network, the child welfare information
29 system of the department of health and human services,
30 the federally mandated national adoption and foster care
31 information system, and other state and local databases
32 pertaining to juveniles and to adults who have been charged
33 with a criminal offense in the court system, to the extent
34 practicable.

35 5. The multiagency information system is authorized to

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1 count and track decision points for juveniles in the juvenile
2 justice system and minors in the child welfare system, evaluate
3 the experiences of the juveniles and minors, and evaluate
4 the success of the services provided. The system is also
5 authorized to count and track decision points for adults who
6 have been charged with a criminal offense in the court system,
7 including but not limited to dismissed charges, convictions,
8 deferred judgments, and sentence information.

9 6. If the department has insufficient moneys or resources
10 to implement this section, the department is authorized to
11 determine which portion of this section may be implemented, if
12 any, and the remainder of this section shall not apply.

13 Sec. 10. NEW SECTION. **8.99 Confidentiality of data.**

14 1. For purposes of chapter 22, the department shall not be
15 deemed to be the lawful custodian of records the department
16 maintains for another department or establishment under this
17 subchapter, to the extent the records in question are held
18 by the department as an automated data processing unit of
19 government or held by the department solely for storage for
20 another department or establishment. Such records include but
21 are not limited to all of the following:

22 a. Electronic messaging system data.

23 b. Mainframe data.

24 c. Storage solutions or other electronic information, such
25 as on-premises server data storage and cloud data storage.

26 2. If the department receives a request pursuant to chapter
27 22 for records over which the department has determined it is
28 not the lawful custodian, the department shall deny the request
29 and inform the requester to seek the information from the
30 lawful custodian as provided in chapter 22. The department's
31 determination that it is not the lawful custodian of records is
32 presumed valid. The presumption may be rebutted by clear and
33 convincing evidence to the contrary.

34 3. The department shall provide assistance to the lawful
35 custodian of records held by the department so that the lawful

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1 custodian can comply with the production obligations of chapter
2 22.

3 4. If the department receives a subpoena in an
4 administrative, civil, or criminal case for records for which
5 the department is not the lawful custodian, the department
6 shall notify the lawful custodian and the attorney general's
7 office and cooperate in any efforts to resist the subpoena.

8 Sec. 11. Section 216A.131A, Code 2025, is amended to read
9 as follows:

10 **216A.131A Criminal and juvenile justice planning.**

11 The department shall fulfill the responsibilities of
12 this subchapter, including the duties specified in sections
13 216A.133, 216A.135, ~~216A.136~~, ~~216A.137~~, ~~216A.138~~, and 216A.140.

14 Sec. 12. Section 216A.133, subsection 1, paragraphs d, e, f,
15 l, and t, Code 2025, are amended by striking the paragraphs.

16 Sec. 13. Section 216A.133, subsection 1, paragraph q,
17 subparagraphs (1) and (6), Code 2025, are amended by striking
18 the subparagraphs.

19 Sec. 14. Section 216A.133, subsection 1, paragraph s, Code
20 2025, is amended to read as follows:

21 s. Provide expertise and advice to the legislative
22 services agency, the department of management, the department
23 of corrections, the judicial branch, and others charged
24 with formulating fiscal, correctional, or minority impact
25 statements.

26 Sec. 15. Section 216A.135, subsection 2, paragraph e, Code
27 2025, is amended by striking the paragraph.

28 Sec. 16. Section 232.147, subsection 2, paragraph i, Code
29 2025, is amended to read as follows:

30 i. The statistical analysis center for the purposes stated
31 in section ~~216A.136~~ 8.98.

32 Sec. 17. Section 232.147, subsection 3, paragraph n, Code
33 2025, is amended to read as follows:

34 n. The statistical analysis center for the purposes stated
35 in section ~~216A.136~~ 8.98.

1 Sec. 18. Section 232.147, subsection 4, paragraph i, Code
2 2025, is amended to read as follows:
3 *i.* The statistical analysis center for the purposes stated
4 in [section ~~216A.136~~ 8.98](#).
5 Sec. 19. Section 232.149, subsection 5, paragraph f, Code
6 2025, is amended to read as follows:
7 *f.* The statistical analysis center for the purposes stated
8 in [section ~~216A.136~~ 8.98](#).
9 Sec. 20. Section 232.149A, subsection 3, paragraph m, Code
10 2025, is amended to read as follows:
11 *m.* The statistical analysis center for the purposes stated
12 in [section ~~216A.136~~ 8.98](#).
13 Sec. 21. REPEAL. Sections 216A.136, 216A.137, and
14 216A.138, Code 2025, are repealed.
15 Sec. 22. APPLICABILITY. The following apply to contracts
16 entered into or renewed on or after the effective date of this
17 Act:
18 1. The section of this Act enacting section 8.94.
19 2. The section of this Act enacting section 8.95.
20 3. The section of this Act enacting section 8.96.>
21 2. Title page, by striking lines 1 through 5 and inserting
22 <An Act relating to matters under the purview of the
23 department of management, making appropriations, and including
24 applicability provisions.>

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